

**SUBSTITUTE FOR
HOUSE BILL NO. 4931**

A bill to amend 1976 PA 267, entitled
"Open meetings act,"
by amending section 3a (MCL 15.263a), as amended by 2025 PA 54.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 3a. (1) A meeting of a public body held, in whole or in
2 part, electronically by telephonic or video conferencing in
3 compliance with this section and, except as otherwise required in
4 this section, all of the provisions of this act applicable to a
5 nonelectronic meeting, is permitted by this act in the following
6 circumstances:

7 (a) Before March 31, 2021 and retroactive to March 18, 2020,
8 any circumstances, including, but not limited to, any of the
9 circumstances requiring accommodation of absent members described



1 in section 3(2).

2 (b) Subject to subdivision (d), on and after March 31, 2021
3 through December 31, 2021, only those circumstances requiring
4 accommodation of absent members described in section 3(2). For the
5 purpose of permitting an electronic meeting due to a local state of
6 emergency or state of disaster, this subdivision applies only as
7 follows:

8 (i) To permit the electronic attendance of a member of the
9 public body who resides in the affected area.

10 (ii) To permit the electronic meeting of a public body that
11 usually holds its meetings in the affected area.

12 (c) Subject to subdivisions (d) to ~~(g)~~, **(h)**, after December
13 31, 2021, only in the circumstances requiring accommodation of
14 members absent due to military duty as described in section 3(2).

15 (d) On and after March 31, 2021, for a public body that is an
16 agricultural commodity group, any circumstances, including, but not
17 limited to, any of the circumstances requiring accommodation of
18 absent members described in section 3(2). As used in this
19 subdivision, "agricultural commodity group" means any of the
20 following:

21 (i) A committee as that term is defined in section 2 of the
22 agricultural commodities marketing act, 1965 PA 232, MCL 290.652.

23 (ii) The state beef industry commission created in section 3 of
24 the beef industry commission act, 1972 PA 291, MCL 287.603.

25 (iii) The potato industry commission created in section 2 of
26 1970 PA 29, MCL 290.422.

27 (iv) The Michigan bean commission created in section 3 of 1965
28 PA 114, MCL 290.553.

29 (e) On and after February 13, 2024, for a public body that is



1 responsible for the investment, administration, or management of a
2 municipal public employee retirement system, any circumstances,
3 including, but not limited to, any of the circumstances requiring
4 accommodation of absent members described in section 3(2). As used
5 in this subdivision, "municipal public employee retirement system"
6 means a retirement system as that term is defined in section 3 of
7 the protecting local government retirement and benefits act, 2017
8 PA 202, MCL 38.2803. A public body that is eligible to meet
9 remotely under this subdivision shall set and publish an attendance
10 policy that includes the determination of a quorum with 1 or more
11 members participating electronically.

12 (f) On and after February 13, 2024, for a public body that is
13 a joint agency formed under article 3 of the Michigan energy
14 employment act of 1976, 1976 PA 448, MCL 460.831 to 460.848, any
15 circumstances, including, but not limited to, any of the
16 circumstances requiring accommodation of absent members described
17 in section 3(2). As used in this subdivision, "joint agency"
18 includes a joint agency's board of commissioners and any committee
19 of the joint agency.

20 (g) On and after the effective date of the amendatory act that
21 added this subdivision, for a public body that is a licensing
22 board, any circumstances, including, but not limited to, any of the
23 circumstances requiring accommodation of absent members described
24 in section 3(2). As used in this subdivision, "licensing board"
25 means any body responsible for determining qualifications or
26 issuing credentials to serve in an occupation, including, but not
27 limited to, any such body established under the following acts:

28 (i) The public health code, 1978 PA 368, MCL 333.1101 to
29 333.25211.



(ii) The occupational code, 1980 PA 299, MCL 339.101 to 339.2677.

(iii) The skilled trades regulation act, 2016 PA 407, MCL 339.5101 to 339.6133.

(iv) The Stille-DeRossett-Hale single state construction code act, 1972 PA 230, MCL 125.1501 to 125.1531.

(v) 1966 PA 1, MCL 125.1351 to 125.1356.

(vi) The mobile home commission act, 1987 PA 96, MCL 125.2301 to 125.2350.

(vii) 1967 PA 227, MCL 408.801 to 408.824.

(viii) The ski area safety act of 1962, 1962 PA 199, MCL 408.321 to 408.344

(h) ~~(g)~~—The prerequisite circumstances to holding an electronic meeting described in subdivision (c) do not apply to an electronic proceeding held under section 26, 34, or 62 of the tax tribunal act, 1973 PA 186, MCL 205.726, 205.734, and 205.762.

(2) A meeting of a public body held electronically under this section must be conducted in a manner that permits 2-way communication so that members of the public body can hear and be heard by other members of the public body, and so that public participants can hear members of the public body and can be heard by members of the public body and other participants during a public comment period. A public body may use technology to facilitate typed public comments during the meeting submitted by members of the public participating in the meeting that may be read to or shared with members of the public body and other participants to satisfy the requirement under this subsection that members of the public be heard by others during the electronic meeting and the requirement under section 3(5) that members of the public be



1 permitted to address the electronic meeting.

2 (3) Except as otherwise provided in subsection (8), a physical
3 place is not required for an electronic meeting held under this
4 section, and members of a public body and members of the public
5 participating electronically in a meeting held under this section
6 that occurs in a physical place are to be considered present and in
7 attendance at the meeting for all purposes.

8 (4) If a public body directly or indirectly maintains an
9 official internet presence that includes monthly or more frequent
10 updates of public meeting agendas or minutes, the public body
11 shall, in addition to any other notices that may be required under
12 this act, post advance notice of a meeting held electronically
13 under this section on a portion of the public body's website that
14 is fully accessible to the public. The public notice on the website
15 must be included on either the homepage or on a separate webpage
16 dedicated to public notices for nonregularly scheduled or
17 electronic public meetings that is accessible through a prominent
18 and conspicuous link on the website's homepage that clearly
19 describes its purpose for public notification of nonregularly
20 scheduled or electronic public meetings. Subject to the
21 requirements of this section, any scheduled meeting of a public
22 body may be held as an electronic meeting under this section if a
23 notice consistent with this section is posted at least 18 hours
24 before the meeting begins. Notice of a meeting of a public body
25 held electronically must clearly explain all of the following:

26 (a) Why the public body is meeting electronically.

27 (b) How members of the public may participate in the meeting
28 electronically. If a telephone number, internet address, or both
29 are needed to participate, that information must be provided



1 specifically.

2 (c) How members of the public may contact members of the
3 public body to provide input or ask questions on any business that
4 will come before the public body at the meeting.

5 (d) How persons with disabilities may participate in the
6 meeting.

7 (5) Beginning on October 16, 2020, if an agenda exists for an
8 electronic meeting held under this section by a public body that
9 directly or indirectly maintains an official internet presence that
10 includes monthly or more frequent updates of public meeting agendas
11 or minutes, the public body shall, on a portion of the website that
12 is fully accessible to the public, make the agenda available to the
13 public at least 2 hours before the electronic meeting begins. This
14 publication of the agenda does not prohibit subsequent amendment of
15 the agenda at the meeting.

16 (6) A public body shall not, as a condition of participating
17 in an electronic meeting of the public body held under this
18 section, require a person to register or otherwise provide the
19 person's name or other information or otherwise to fulfill a
20 condition precedent to attendance, other than mechanisms
21 established and required by the public body necessary to permit the
22 person to participate in a public comment period of the meeting.

23 (7) Members of the general public otherwise participating in a
24 meeting of a public body held electronically under this section are
25 to be excluded from participation in a closed session of the public
26 body held electronically during that meeting if the closed session
27 is convened and held in compliance with the requirements of this
28 act applicable to a closed session.

29 (8) At a meeting held under this section that accommodates



1 members absent due to military duty or a medical condition, only
2 those members absent due to military duty or a medical condition
3 may participate remotely. Any member who is not on military duty or
4 does not have a medical condition must be physically present at the
5 meeting to participate. This subsection does not apply to a meeting
6 of a public body held electronically under subsection (1)(d), (e),
7 ~~or (f)~~, **or (g)**, or to a proceeding described in subsection
8 ~~(1)(g)~~. **(1)(h)**.